

File No.: EXP202408339

SANCTIONING PROCEDURE RESOLUTION

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, and upon noticing indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection, actions were initiated under file number EXP202309003. The complaint was accepted for processing on September 22, 2023.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities under Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD hereinafter).

In the context of the investigative actions, two requests for information were sent to PUERTO FOGONES SL, with NIF B09734724, requiring that, within ten working days, it present to this Agency the information and documentation specified.

THIRD: The aforementioned request for information was notified on both occasions in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

The first time, the request was not collected by PUERTO FOGONES SL within the availability period, as evidenced by the acknowledgment of receipt in the file, understanding that the notification was made, in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP, on April 14, 2024. The second time, the request was sent by postal mail, being collected by PUERTO FOGONES SL on April 26, 2024, as evidenced by the acknowledgment of receipt in the file.

FOURTH: Regarding the requested information, PUERTO FOGONES SL has not submitted any response to this Spanish Agency for Data Protection.

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FIFTH: On June 24, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against PUERTO FOGONES SL for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The decision to initiate the present sanctioning procedure was notified to PUERTO FOGONES SL, in accordance with the rules established in the LPACAP, through an announcement published in the Official State Gazette dated August 8, 2024, after being returned to sender by the postal service due to being uncollected (not picked up at the office), following two unsuccessful delivery attempts of the postal notification, as evidenced by the acknowledgments of receipt in the file.

In accordance with Article 42.1 of the LPACAP, the notification of the initiation agreement was also made available to the interested party electronically through the single enabled electronic address.

SEVENTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from PUERTO FOGONES SL.

Article 64.2.f) of the LPACAP -provision of which PUERTO FOGONES SL was informed in the initiation agreement of the procedure- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based,

the infringement of the GDPR attributed to PUERTO FOGONES SL, and the sanction that could be imposed. Therefore, considering that PUERTO FOGONES SL has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution. EIGHTH: According to the report obtained from the AXESOR tool, the entity PUERTO FOGONES SL is an SME (Microenterprise), established in 2022, with a business volume of (...) euros in 2022. In light of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The requests for information indicated in the second and third backgrounds were notified in accordance with the provisions of the LPACAP.

SECOND: PUERTO FOGONES SL has not responded to the requests for information made by this Agency within the timeframes granted for this purpose.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation Breached

In light of the facts presented, it is considered that PUERTO FOGONES SL has not provided the information requested by the Spanish Data Protection Agency.

With the aforementioned conduct of PUERTO FOGONES SL, the investigative power conferred to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the section "Proven Facts" are deemed to constitute an infringement attributable to PUERTO FOGONES SL, for violation of Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

"a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information necessary for the performance of its tasks."

III

Classification and Qualification of the Infringement

The facts presented are deemed to constitute an infringement attributable to PUERTO FOGONES SL. This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: "failure to provide access in violation of Article 58, paragraph 1."

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of an enterprise, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

"ñ) Failure to provide access for the personnel of the competent data protection authority to personal data, information, premises, equipment, and means of processing that are required by the data protection authority for the exercise of its investigative powers."

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR. Furthermore, to ensure a consistent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into account.

In light of the facts presented, it is considered appropriate to impose a sanction on PUERTO FOGONES SL for the violation of Article 58.1 of the GDPR classified under Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine in the amount of €2,000.00.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on PUERTO FOGONES SL, with NIF B09734724, for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €2,000.00 (TWO THOUSAND euros).

SECOND: TO ORDER PUERTO FOGONES SL, with NIF B09734724, that in accordance with the investigative power provided in Article 58.1.a) of the GDPR, it shall provide, within ten working days from the date this resolution becomes final and enforceable, the information requested in the requests made in the framework of the proceedings numbered EXP202309003 and referred to in the background of this resolution.

It is warned that failure to comply with the requests of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

THIRD: NOTIFY this resolution to PUERTO FOGONES SL.

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FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested

parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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